

23STCV01106 23STCV01106

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-07-14

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Case Number: 23STCV01106 Hearing Date: July 14, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

MINJI JO

vs.

NSEW GA, INC.

Case

No.: 23STCV01106

Hearing Date: July 14, 2026

Defendants'

motion for summary judgment is DENIED, WITHOUT PREJUDICE.

On 1/18/2023, Plaintiff Minji Jo (Plaintiff) initiated this action. On 2/25/2025, Plaintiff filed a first amended complaint (FAC) against Defendants Paul Kwak, Michelle Kwak, NSEW GA, Inc., and PaulPhillip Media, LLC (collectively, Defendants), alleging: (1) common count; (2) fraudulent conveyance; and (3) unjust enrichment.

On 4/16/2026, Defendants moved for summary judgment.

Discussion

Defendants move for summary judgment on the grounds that Plaintiff has failed to produce any evidence to support any of her causes of action.

In support, Defendants submitted evidence that Plaintiff has not responded to any of Defendants' discovery responses served on 2/4/2026.

However, Defendants filed this motion in April 2026, just two months after filing discovery for the first time in February, and just a month after initial responses were due in May. While Defendants moved to compel discovery, that motion is set for hearing after this motion.

The Court finds Defendants' motion for summary judgment based solely on a failure to respond to discovery, under the circumstances, to be an act of gamesmanship rather than a legitimate, reasonable litigation strategy. Rather, the appropriate action is to move for terminating sanctions in order to have the action dismissed.

Based on the foregoing, Defendants' motion for summary judgment is denied.

It is
so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend

to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.